

Here, the third amended complaint pleads the core statutory elements of financial elder abuse. Accordingly, the Plaintiffs allege sufficient facts to constitute a cause of action for financial elder abuse regarding real property.

Defendants' demurrer to the second cause of action is **OVERRULED**.

As with the first cause of action, the second cause of action pleads the core statutory elements of financial elder abuse. Accordingly, the Plaintiffs allege sufficient facts to constitute a cause of action for financial elder abuse regarding personal property.

Defendants' demurrer to the third cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for breach of fiduciary duty.

Defendants' demurrer to the fourth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for constructive fraud.

Defendants' demurrer to the fifth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for conversion.

Defendants' demurrer to the sixth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for quiet title.

Defendants' demurrer to the seventh cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for unjust enrichment.

Defendants' demurrer to the eighth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for accounting of the trust.

Defendants' demurrer to the ninth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for breach of the trust agreement.

Defendants' demurrer to the tenth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for surcharge of trustee.

CONTINUED to March 8, 2027, at 10:00 a.m. in Courtroom 8. Proof of service of the summons and complaint on the previously unserved defendant, Christavius Montez Robinson, Jr. was filed June 3, 2026. The defendant has yet to answer the complaint.

Order to Show Cause Re: Sanctions

VACATED. The Court finds GOOD CAUSE NOT TO ORDER SANCTIONS based on the declaration submitted on May 19, 2026, by attorney Lawrence Niermeyer.

26CV-02395 Petition of: Anthony Borba

Order to Show Cause Re: Name Change

Appearance required. Proof of publication of the petition by an adult to change his own name was filed June 1, 2026. Absent legal grounds to deny the petition or valid objection at the time of the hearing, the petition will be GRANTED.

26CV-02848 Marco Estrada vs Luis Soto

Order to Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing on Respondent has been filed with the court.